



Appeal Decision

Site visit made on 25 August 2026

by Andrew Phillips MPlan BA CertHE MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10th September 2026

Appeal Ref: 6007030

Kilnash, Vicarage Lane, North Weald Bassett, Epping, Essex CM16 6AL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs C and K Drewett against the decision of Epping Forest District Council.
 - The application Ref is EPF/2501/25.
 - The development proposed is demolition of dwelling and garage and construct a replacement dwelling (self build).
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Following the submission of the appeal a new National Planning Policy Framework 2026 (Framework) was published. Both the Council and the appellant were given opportunity to comment and I have considered the responses received.

Main Issues

3. The main issues are:
 - Whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies.
 - The effect of the proposal on the openness and purposes of the Green Belt.
 - Whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Is the proposal inappropriate development

4. The proposal seeks to demolish the single storey 1960s bungalow on the site and replace it with a two storey dwelling that is stated as increasing the floor area from 141sqm to 301 sqm and an increase of volume from 583 cubic metres to 1237 cubic metres. It is also stated the ridge height would increase from 5.5m to 8.46m.
5. Policy GB6 of the Framework states that development is inappropriate unless it meets with one of the exceptions contained within Policy GB7 of the Framework. One of the exceptions within Policy GB7 of the Framework is contained within 1b

that relates to replacement of an existing building; with the proposal not resulting in a materially larger property than the one it replaces.

6. Whilst I have noted the appellants statement that the proposal would only lead to a 35% increase in footprint, the proposal leads to over 100% increase in both floor area and volume. The proposed replacement dwelling is materially larger than the one it replaces and, on this basis, it would count as inappropriate development.
7. The appellant has provided three recent application decisions on the site that gave prior approval to a single storey rear extension and additional storey, as well as a Certificate of Lawful Development for a single storey side extension. In total if all these were built the current proposal would result in a reduced floor area, footprint and volume but would lead to a slightly higher ridge.
8. With the appellant having sought several different options to build, as well as the current proposal, there is a clear intent to enlarge the existing dwelling. In addition, the ground floor rear and side extension would be relatively easily constructed. On this basis, there is a greater than theoretical possibility that these developments would take place. However, from the evidence before me it is not clear that a 1st floor could be structurally added to the property and on this basis this addition is at this time only a theoretical fallback.
9. The two ground floor extensions would increase the footprint, floor area and volume of the dwelling that directly link to the question if the appeal proposal would lead to a materially larger property. In addition, the footprint of the appeal scheme is 92sqm less than that from the permitted development fallback position. Therefore, I have given both ground floor extensions significant weight in my determination.
10. Whilst I have given significant weight to two of the fallback options, this does not include the increase in volume and height that would be created by the additional 1st floor. On this basis, the proposal would cause a materially larger property than the one it replaces that is not justified by a fallback position.
11. Another element of Policy GB7 of the Framework is 1e that states that redevelopment of previously developed land is not inappropriate, as long as it does not substantially harm the Green Belt.

Openness of the Green Belt

12. The site has a mix of mature hedges and planting at the front, with a significant amount of trees along the south-west and north-west boundaries. The site also benefits from a large garden area that wraps around three sides of the existing dwelling. A public right of way runs along the southwest boundary.
13. The proposed redevelopment retains the built form in a primary east-west direction, though creates a H plan design and increases the footprint from 141 sqm to 190sqm. However, the most significant difference is the increase in height that seeks to transform the single storey property into one that has a matching ridge height with the adjacent The Hawthorns dwelling. The Hawthorns is positioned in a north-south direction that reduces its massing on the street scene.
14. The proposal 1st floor element, as detailed above, does not have a fallback position and the significant increase in height would have a substantial urbanising impact in the rural character of this street scene. This in turn would cause local

substantial harm to the openness of the Green Belt by virtue of blocking views towards trees to the side and rear of the property.

15. It is therefore concluded that the proposal would not comply with Policy GB7 of the Framework and the proposal is inappropriate development.

Very special circumstances

16. Policy GB6 of the Framework requires 'substantial weight should be given to the harm to the Green Belt which would be caused, including harm to its openness'. It also details inappropriate development is harmful to the Green Belt and should not be allowed unless very special circumstances are provided.
17. No other harm has been identified by the parties. The harm of the proposal only relates to it being inappropriate development and the harm to the openness of the Green Belt in the immediate locality.
18. Whilst the proposed replacement dwelling would lead to improved accommodation and likely have limited short term economic benefits; these do not amount to a very special circumstance. The proposal would also have a neutral impact upon the housing stock within the local area. Therefore, the proposal does not comply with Policies GB6 and GB7 of the Framework.
19. The proposal also does not comply with Policies SP5 and DM4 of the Epping Forest District Local Plan Part 1 2011-2033 Adopted March 2023 that in total seek to protect the openness of the Green Belt and to ensure redevelopment of a previously developed site does not have a greater impact on openness than the existing development.
20. With the proposal not complying with Policies GB6 and GB7 of the Framework, Policy S5 of the Framework does not apply.

Other Matters

21. I have considered the duties contained in the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act). The Act contains duties whereby special regard should be given to the desirability of preserving listed buildings, their setting or any features of special architectural or historic interest which it possesses.
22. I have noted the Grade II listed building to the west of St Clements. I have also noted that the Council did not refuse the application on heritage grounds. Given the distance between the listed building and the proposed development it is considered that the proposal would have a neutral impact upon the setting of this grade II listed building.

Conclusion

23. For the reasons given above the appeal should be dismissed.

Andrew Phillips

INSPECTOR